

Council Meeting
April 10, 2024
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The Claremont City Council held a meeting on Wednesday, April 10, 2024, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Spencer Batchelder – Absent
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor Joel Tremblay
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Assistant Mayor Matteau asked for an agenda change under old business for the Charter Amendment vote reconsideration.

Mayor Girard asked for an agenda change under New Business item D: Councilor Resignation.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to Suspend Council Rules.

Roll call:

**Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes**

Motion carried 8-0

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to accept the minutes of the March 27, 2024, City Council meeting with amendment.

Councilor Koloski stated there is a part missing and wants his reasoning expressed for voting no, included in minutes.

Council Clerk, Bizzarro asked where Councilor Koloski wants this change, Councilor Koloski stated after the vote for the charter.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard noted the Kiwanis Club has their online auction finishing up this Saturday at 4 p.m.

The Sullivan County Humane Society is hosting a Bingo at Claremont Senior Center this Saturday.

Claremont Senior Center is hosting a golden years expo on Saturday, April 20th from 9am-2:30pm.

Councilor Koloski asked for a moment of silence for the late Chief Spaulding of the Ascutney Fire Department.

CITY MANAGER’S REPORT

Manager Manale introduced the City's new Finance Director, Nancy Bates.

Parks and Recreation, and the Department of Public Works are preparing for warmer weather in the City with new granite benches, upgrades to seating options on Pleasant St., Broad Street Park, and the Rail Trail.

Later this month on Sullivan Street will begin the removal of two stumps and sidewalks, and then repairs to the island on Opera House Square. New LED street lights, box planters, bike racks, and replacing trees that were taken down last fall.

Security cameras will be installed around the City including two in Barnes Park hoping to deter vandalism.

Manager Manale thanked the fire department for their swift action extinguishing the fire at the Barnes Park Grandstand.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Arts, History, and Culture Resources Preservation Commission

Mayor Girard noted there are ten applications and would like a councilor on the board, and recommended the Council to make a blanket nomination for all ten applications so no one gets missed.

Councilor Koloski asked to re-visit the council seat, as he did not want to bump any applicant that has taken time to fill out the application.

Mayor Girard stated there would be four alternate seats being added through an Ordinance change.

Assistant Mayor Matteau asked if it was too late to change the ordinance to add a Council seat as an eighth regular member.

Manager Manale asked the Council if they wanted the Ordinance to come back with that change.

Mayor Girard, asked the Council by consensus if that's what they want, the Council agreed.

Mayor Girard stated that should not keep the Council from appointing members.

Councilor O'Hearne shared concern for the composition language of the seats.

Mayor Girard stated almost everyone had an arts or historical background.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to nominate all 10 applicants.

Councilor Hemingway asked if David Putnam does business with Claremont would there be a conflict of interest.

Mayor Girard doesn't think this would be a conflict of interest.

Councilor Hemingway shared the same concern as Councilor O'Hearne about the composition of the members where it says arts *organization members*.

Mayor Girard stated the ordinance may have to be changed to correct this.

Councilor Koloski suggested making the corrections.

By consensus the Council agrees to move the Claremont Arts, History, and Culture Resources Preservation Commission appointments to the first meeting in May.

Upper Valley Lake Sunapee Regional Planning Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to appoint Tom Luther to Seat 1 of the Upper Valley Lake Sunapee Regional Planning Commission.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

Conservation Commission

A motion was made by Councilor O'Hearne and seconded by Councilor Limoges to re-appoint John Hurley to seat 1 of the Conservation Commission.

Voice vote:

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to re-appoint Stephen Wood to Seat 2 of the Conservation Commission.

Voice vote:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0

Historic District Commission

A motion was made by Councilor Limoges and seconded by Councilor Hemingway to re-appoint Erin Angley-Cohen to Seat 1 of the Historic District Commission.

Voice vote:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0

A motion was made by Councilor Tremblay and seconded by Assistant Mayor Matteau to re-appoint Jill Chastenay to Seat 3 of the Historic District Commission.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

A motion was made by Councilor O’Hearne and seconded by Councilor Limoges to appoint Tom Luther to Seat A-1 on the Historic District Commission.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Zoning Board of Adjustment

A motion was made by Assistant Mayor Matteau and seconded by Councilor Hemingway to appoint Richard Collins to Seat 1 on the Zoning Board of Adjustment.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

**Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0**

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to appoint John Dean to Seat A3 on the Zoning Board of Adjustment.

**Voice vote:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0**

Claremont Planning Board

A motion was made by Councilor Limoges and seconded by Assistant Mayor Matteau to re-appoint Dakin Burdick to be Seat 1 on the Claremont Planning Board.

**Voice vote:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0**

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to re-appoint Jonathan Nelson to Seat 2 on the Claremont Planning Board.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to appoint John Wood Giosi to Seat 8 on the Claremont Planning Board.

Councilor Koloski noted the address on the application was Councilor O’Hearne’ s address and brought up conflict of interest.

Councilor O’Hearne stated there was no conflict.

Mayor Girard stated to move on, and asked for a vote.

Voice vote:

Koloski – opposed

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 7-1 (1 opposed)

CITIZEN’S FORUM

Mayor Girard opened up Citizens Forum, asking those who speak to state their name and ward and direct their questions to the Council. Mayor Girard noted there were many people in attendance and reminded them if they are here to say the same thing someone else does, please just state you agree with the previous person, and add anything if its new.

Brian Zutter, Ward 2, announced Arrowhead annual recreation spring clean-up, and asked about CIP follow up.

Chiara Tosi Nelson, Ward 2 shared concern for Jon Stone released records and asked the Council that he immediately be removed from the CDA and Policy Committee.

Codi Raymond, Ward 1, agrees with Tosi Nelson's comments.

Mike Tetu, Ward 1, has a procedural question, and asked how the charter amendment was not on the agenda, and now it is. Mr. Tetu stated he was uncomfortable with suspending rules as others may have wanted to be here to speak on it.

Judith Koster, Ward 2, Agrees with Tosi Nelson's comments, and introduced the "Better Claremont", was started a few years ago when a concern was raised about Acuity coming into industrial boulevard to create a construction and debris demolition close to residential areas. Ms. Koster noted if the Council had any questions they can reach out.

Hope Damon, State Representative for Sullivan County, District 8, gave an update on house activities.

Councilor Koloski invited Tyler Sullivan to speak.

Tyler Sullivan, representing the Windsor County Mentors noted their 50th anniversary on April 27th in Windsor VT. Serving Sullivan County youth five to eighteen years old.

Trish Killay, Ward 1, agrees with Chiara, and stated Jon Stone facilitated a social media threat against herself a few years ago and noted the Council's responsibility is to represent all citizens and stated the Council at that time failed her and her family, Ms. Killay stated the Council now has an opportunity and should take a stand.

Mayor Girard, closed Citizen's Forum.

OLD BUSINESS

CDA Bylaws

Director Merrill explained the additional changes, included adding administrative costs into grants, coordination with the City Council, in- person attendance, redefined secretary position.

Mayor Girard brought up loan programs, understanding that the money would be for new businesses or expanding to a new spot on pleasant street.

Director Merrill stated there are rules and procedures for loan funds the CDA has that came from the USDA, they also created procedures for microlending based on information received from

Council, they can be amended at the CDA level but as of now the loans are not limited to new business, its for any business in the downtown district.

Manager Manale suggested working with Director Merrill to clarify the language that's specific to new businesses.

A motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to approve Claremont Development Authority By-laws.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

Reconsideration of Charter Amendment

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to waive Council Rules 34 & 35.

Councilor O'Hearne disagrees with this motion, Assistant Mayor Matteau explained wanting to cover all bases.

Mayor Girard asked for a roll call.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O'Hearne – no

Girard – yes

Motion carried 7-1

A motion was made by Assistant Mayor Matteau and seconded by Councilor Hayden to reconsider the Charter Amendment vote held at the last Council Meeting.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Mayor Girard asked if anyone would like to speak on this topic.

Mike Tetu, Ward 1, stated he was hoping this would have been put on the school election in March, and noted the Council could hold a special election, and asked for the Charter Amendment to be held during November 2024.

Sam Killay, Ward 1, a part of the petition committee noted this has been a process of years, and as a committee was disappointed in Council, hopes Council will do their job tonight.

A motion was made by Assistant Mayor Matteau and seconded by _____ to Issue Order to City Clerk for Placement of Proposed Charter Amendment on the Ballot for the November 4, 2025, Election.

Assistant Mayor Matteau re-read the original motion to refresh everyone’s memory.

**“Motion to Issue Order to City Clerk for Placement of Proposed
Charter Amendment on the Ballot for the November 4, 2025,
Election”**

The Claremont City Council hereby submits a proposed amendment to the City Charter that seeks to amend City Charter Section 22 (Ordinances), “Registered Voter Binding Initiative”

to allow registered voters propose ordinances with an initiative petition signed by registered voters equal in number to ten percent of the votes cast in the last municipal election.

PROPOSED AMENDMENT TO CITY CHARTER:

Part I, Article III, Section 22 – Ordinances

Registered Voter Binding Initiative

Registered voters may propose an ordinance with an Initiative Petition signed by registered voters equal in number to ten percent of the votes cast in the last municipal election. When said petition is complete, as certified by the City Clerk to have met the above requirements, the proposed ordinance shall be submitted to the City Council requesting the City Council to pass the proposed ordinance without alteration; if the proposed ordinance be not passed without alteration within twenty days after the date of the Clerk's certification, then the proposed ordinance shall be submitted without alteration by the City Council to the vote of registered voters within the time frame required by RSA 49-C:33, II. If the majority of the registered voters voting on any proposed ordinance, which falls within the lawful rights and powers of the city, shall vote in favor thereof, the same ordinance shall thereafter go into effect on January 1 of the next calendar year.

Any ordinance approved via binding initiative shall be consistent with RSA 49-B related to home rule and the general laws of the State of New Hampshire.

Upon approval of this amendment by either the City Council or the registered voters, the text of this amendment will be inserted into the Claremont City Charter under Section 22 (Ordinances).

The Claremont City Council's approval of this Motion shall constitute the "order" in accordance with N.H. RSA §49-B:5. The Council hereby orders as well as authorizes the City Clerk to undertake any necessary actions or statutory obligations to effectuate the placement of this proposed amendment to the City's Charter on the ballot for the November 4, 2025."

Councilor O'Hearne thanked Assistant Mayor Matteau for re-reading the motion but explained to Mayor Girard there is no need for a second to the motion as the motion to reconsider was just done.

Councilor Koloski stated he is in favor of this going forward on a closer election in 2024, but feels he can't say no to it going onto the November 2025 election.

Councilor Hayden agrees, it would get clearer picture of what citizens want with a greater turn out.

Mayor Girard asked for a roll call.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

NEW BUSINESS

Director Merrill, displayed the 1765 original proprietors' book, and explained how deForest took it down to Massachusetts for a preservation quote.

Resolution 2024-31 Moose Plate Grant – Public Hearing

RESOLUTION 2024-31

Moose Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City Council approves the application of up to \$10,000 for a Moose Plate grant to be used for the preservation and conservation of the Claremont Proprietors Book dated 1764; and

WHEREAS if the City is awarded the Moose Plate grant funds the City Council will accept the funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED THAT if the City is awarded the Moose Plate grant funds the City Council will expend up to \$10,000 in grant funding for the purpose of preservation and conservation of the Proprietor's Book with no impact on the tax rate;

BE IT FURTHER RESOLVED THAT the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 *Vote Required*).

A motion was made by Councilor Hemingway and seconded by Councilor Koloski to adopt Resolution 2024-31.

Councilor Hemingway Read Resolution 2024-31 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Resolution 2024-30 Request Funds for Welfare – Public Hearing

Director Carr explained the on-going housing crisis, and asked the Council to overspend the welfare budget.

RESOLUTION 2024-30

Request Funds for Welfare

Permission to Overspend the 2024 Welfare Department Budget

City of Claremont

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that it hereby grants permission to overspend the Welfare Department 2024 Budget, as approved, by up

to \$100,000.00, offset by under expenditure of Debt Services line 01-461-461735-0000, to cover client costs, as required by New Hampshire RSA 165:1 et seq.

Such department over-expenditures shall not exceed the total bottom line appropriated for 2024. (2/3 Vote Required)

Dated this 27th day of March, 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Tremblay and seconded by Assistant Mayor Matteau to adopt Resolution 2024-30.

Councilor Tremblay Read Resolution 2024-30 into the record.

Mayor Girard opened a public hearing,

Hope Damon, State representative for District 8, noted the house passed seven bills related to housing last week that are now in the hands of the Senate and will follow up and report back about them.

Mayor Girard closed the public hearing.

Councilor Hemingway asked if this was state mandated, Director Carr replied, yes.

Assistant Mayor Matteau expressed her appreciation to Director Carr's position.

Councilor Koloski asked when was the last time welfare asked to overspend, Director Carr replied it was back in 2021.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

Council Resignation

Mayor Girard stated since the last Council meeting the Council has received a resignation from Councilor Batchelder.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept Councilor Batchelder's resignation by end of City Council Meeting.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

Mayor Girard found the last advertisement for a council vacancy and edited with new dates. Mayor Girard stated applications will need to be reviewed by the May 8th meeting, and suggested applications are due to the City Manager's office by May 1st, and hold the May 8th meeting an hour earlier for interviews.

Councilor Koloski has no issue with the suggested time frame, but asked about the residency requirement. It was clarified that the applicant must be a registered voter in ward 2.

Councilor Hayden asked to clarify that the application deadline is May 1st.

Mayor Girard confirmed, and noted in the past Ms. Bizzarro will send the packet to potential candidates as she would the regular Council so they are prepared for the meeting.

COMMITTEE REPORTS

Assistant Mayor Matteau noted the Planning Board met Monday and discussed a subdivision on Bible Hill, 32 Pleasant Street requested a conditional use permit for 8, 2-bedroom apartments. Valley regional hospital wants to turn the old nurses' dorms to nursing dorms for short-term traveling nurses.

Councilor Hayden noted the EPA steering Committee is tomorrow.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Hayden asks if there was an ability to have the Charter Amendment moved to 2024.

Mayor Girard stated the motion was already voted on to have it held in November 2025.

Councilor O’Hearne stated to the new councilors that there could have been another motion made to amend the charter motion to move it to November 2024.

Mayor Girard would like an update on attendance for boards and commissions.

Councilor Koloski wants to be more aggressive on missed fire inspection, and suggested the fee be increased.

Councilor Koloski wants an update on the rail trail for back filing and where city is on this process.

Councilor Limoges asked about the Taxi Cab Ordinance, Manager Manale stated legal is looking into it.

Councilor Koloski asked for housing task force separate from out housing authority.

Councilor O’Hearne asked for updates on using cold patch on dirt roads, parking garage cleanliness and maintenance, and the damage to granite on Pleasant Street.

Councilor Hayden asked how to get a cross walk installed.

Mayor Girard explained that topic would go to the TAC, then the TAC would bring things for recommendation to the Council.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:20 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council